

SENATE No. 243

The Commonwealth of Massachusetts

PRESENTED BY:

Barry R. Finegold

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring consumer notification for chatbot systems.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Barry R. Finegold</i>	<i>Second Essex and Middlesex</i>	
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>11/5/2025</i>

SENATE No. 243

By Mr. Finegold, a petition (accompanied by bill, Senate, No. 243) of Barry R. Finegold for legislation to require consumer notification for software or computer program that simulates human conversation or chatter through text or voice interactions. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring consumer notification for chatbot systems.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 93 of the General Laws is hereby amended by adding the following
2 new section:-

3 Section 115. Disclosure of computerized communications.

4 (a) For the purposes of this section, the following words shall have the following
5 meanings unless the context clearly requires otherwise:

6 “Bot”, an automated online account wherein all or substantially all of the actions or posts
7 of that account are not the result of a person including, but not limited to, a chatbot, artificial
8 intelligence agent, avatar or other computer technology that engages in a textual or aural
9 conversation.

10 “Online”, appearing on any public-facing Internet website, web application or digital
11 application, including a social network or publication.

12 (b) It is hereby declared to be an unfair and deceptive act or practice in violation of
13 section 2 of chapter 93A for any person to engage in a commercial transaction or trade practice
14 with a consumer of any kind in which the consumer is communicating or otherwise interacting
15 with a bot that may mislead or deceive a reasonable person to believe they are engaging with a
16 human, regardless of whether such consumer is in fact misled, deceived or damaged thereby;
17 provided, however, that a person utilizing or deploying a bot shall not be liable under this section
18 if the consumer is notified in a clear and conspicuous fashion that they are communicating with a
19 computer rather than a human being.